

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Anna Steel	Team: Team # 8	CCRB Case #: 200916205	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/06/2009 8:30 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/6/2011	Precinct: 42		
Date/Time CV Reported Fri, 10/16/2009 11:55 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/16/2009 11:55 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Daniel Oconnell	08496	943619	HBX/QIM
2. POM Steven Mercedes	24886	943567	HBX/QIM

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Javier Valentin	05528	924576	HBX/QIM

Officer(s)	Allegation	Investigator Recommendation
A . POM Steven Mercedes	Abuse: PO Steven Mercedes stopped § 87(2)(b)	Abuse: A . Unfounded
B . POM Steven Mercedes	PO Steven Mercedes stopped § 87(2)(b)	B . Substantiated
C . POM Daniel Oconnell	Abuse: PO Daniel Oconnell stopped § 87(2)(b)	C . Substantiated
D . POM Steven Mercedes	Abuse: PO Steven Mercedes frisked § 87(2)(b)	D . Substantiated
E . POM Steven Mercedes	Abuse: PO Steven Mercedes searched § 87(2)(b) and § 87(2)(b)	E . Unsubstantiated
F . POM Steven Mercedes	Abuse: PO Steven Mercedes questioned § 87(2)(b)	F . Exonerated
G . POM Steven Mercedes	Discourtesy: Steven Mercedes spoke obscenely to § 87(2)(b) and § 87(2)(b)	G . Unsubstantiated
H . POM Daniel Oconnell	Discourtesy: PO Daniel Oconnell spoke obscenely to § 87(2)(b)	H . Unsubstantiated

Case Summary

§ 87(2)(b) filed a complaint with the CCRB on October 16, 2009 (encl. 7a – 7c).

On October 6, 2009, at about 8:30 p.m., PO Steven Mercedes and PO Daniel O’Connell from Housing Borough Impact Response Team approached § 87(2)(b). The following allegations resulted:

- **Allegation A – Abuse of Authority:** PO Steven Mercedes stopped § 87(2)(b) § 87(2)(g) it is recommended that Allegation A be closed, **Unfounded**.
- **Allegation B – Abuse of Authority:** PO Steven Mercedes stopped § 87(2)(b)
- **Allegation C – Abuse of Authority:** PO Daniel O’Connell stopped § 87(2)(b) § 87(2)(g) it is therefore recommended that Allegations B and C be closed, **Substantiated**.
- **Allegation D – Abuse of Authority:** PO Steven Mercedes frisked § 87(2)(b) § 87(2)(g) it is recommended that Allegation D be closed, **Substantiated**.
- **Allegation E – Abuse of Authority:** PO Steven Mercedes searched § 87(2)(b) and § 87(2)(b) § 87(2)(g) it is recommended that Allegation E be closed, **Unsubstantiated**.
- **Allegation F – Abuse of Authority:** PO Steven Mercedes questioned § 87(2)(b) § 87(2)(g) it is recommended that Allegation F be closed, **Exonerated**.
- **Allegation G – Discourtesy:** PO Steven Mercedes spoke obscenely to § 87(2)(b) and § 87(2)(b)
- **Allegation H – Discourtesy:** PO Daniel O’Connell spoke obscenely to § 87(2)(b) and § 87(2)(b) § 87(2)(g) it is recommended that Allegations G and H be closed, **Unsubstantiated**.

This case was originally assigned to Investigator Mohr. Following his promotion to the Mediation Unit, the case was reassigned to Investigator Steel on February 17, 2010.

Results of Investigation

Civilian Statement(s)

Complainant/victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who § 87(2)(b) and has black hair.

§ 87(2)(b) was interviewed at the CCRB on October 27, 2009 (encl. 8a – 8d). On October 6, 2009, at 8:30 p.m., § 87(2)(b) was in a park near § 87(2)(b) in the Bronx with his friends, § 87(2)(b) and § 87(2)(b). Officers, identified through the investigation as PO Steven Mercedes and PO Daniel O’Connell of Housing Borough Impact Response Team, approached. PO Mercedes asked § 87(2)(b) to approach and put his hands on a nearby wall. § 87(2)(b) asked why. PO Mercedes grabbed his elbow and handcuffed him. PO Mercedes felt in the front and rear pockets of his jeans and the front pocket of his jacket. § 87(2)(b) protested. PO Mercedes took his ID and put it on a ledge. The officers told § 87(2)(b) he fit the description of a subject with a gun. PO Mercedes then approached § 87(2)(b) PO O’Connell and a second

officer, identified as Sgt. Javier Valentin, stayed with § 87(2)(b) § 87(2)(b) told the officers they had no reason to hold § 87(2)(b) PO O'Connell and Sgt. Valentin said they had seen the group drinking. § 87(2)(b) denied this, but later said one of his acquaintances had a bottle of champagne. PO O'Connell noted § 87(2)(b)'s name and address and let him to leave. § 87(2)(b) and § 87(2)(b) walked to § 87(2)(b) PO Mercedes and PO O'Connell approached them again and asked who had called them 'pussies.' One of the officers said, "Y'all from the hood, tell us who said it! Y'all pussies!" The officers then left the scene.

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who is § 87(2)(b), is baldheaded.

§ 87(2)(b) was interviewed at the CCRB on October 27, 2009 (encl. 9a – 9d), § 87(2)(g). When PO Mercedes and PO O'Connell approached, they told § 87(2)(b) and § 87(2)(b) not to move. PO Mercedes then asked § 87(2)(b) what was in a plastic bag he was holding. § 87(2)(b) responded that it was 'something to drink,' and held up the bottle. PO Mercedes requested his ID, which § 87(2)(b) provided. PO Mercedes and PO O'Connell then turned to § 87(2)(b) and said he fit the description of an armed subject. The officers handcuffed him. § 87(2)(b) later said that § 87(2)(b) was immediately handcuffed. When § 87(2)(b) protested, PO Mercedes said, "I fucking said you fit the description." Both officers searched § 87(2)(b)'s pants and jacket pockets. Sgt. Valentin approached § 87(2)(b) and told him, "Turn your fucking phone off; do not record me!" and also threatened to 'kick [his] behind.' Later in his interview, § 87(2)(b) did not mention the use of profanity, but rather said that the officers pushed § 87(2)(b) to a fence and handcuffed him, after which PO Mercedes frisked him and issued him a summons. § 87(2)(b) said that when the officers approached them again, both officers called them a 'bunch of pussies.' He later said the officers threatened to 'fuck [them] up' and called them a 'fucking bunch of bitches.' § 87(2)(b) told the officers they were a 'bunch of pussies.'

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who is § 87(2)(b), and has black hair.

§ 87(2)(b) was interviewed at the CCRB on October 27, 2009 (encl. 10a – 10d), § 87(2)(g). After § 87(2)(b) voluntarily approached the officers, PO O'Connell handcuffed him. § 87(2)(b) yelled at the officers about why he had been stopped. The officers never spoke with § 87(2)(b) PO Mercedes and PO O'Connell frisked § 87(2)(b) patted him down over his waistband, and then removed his handcuffs. Sgt. Valentin responded to the scene at this time. PO Mercedes approached § 87(2)(b) and requested his ID, which he provided. PO Mercedes frisked him over his upper body and felt inside his front pants pockets. PO Mercedes then issued him a summons for an open container. § 87(2)(b) denied consuming alcohol or having any open containers in his possession on the day of the incident. When the officers approached § 87(2)(b) and his acquaintances in front of § 87(2)(b) § 87(2)(b) first stated that PO Mercedes only asked who had said something. He later stated that PO Mercedes remarked, "What's up? Y'all pussies or what?" § 87(2)(b) denied saying anything to the officers prior to their approach.

Attempts to Contact Civilians

A letter was sent to § 87(2)(b) on February 17, 2010. On this date, a check via 411.com confirmed her address and yielded a telephone number for her. A call to this number reached an individual who stated that no one by § 87(2)(b)'s name used the number. On February 19, 2010,

a Verizon subpoena was returned to the investigator with negative results. On March 1, 2010, a final letter was sent to § 87(2)(b). Absent additional information, no further attempts to contact § 87(2)(b) could be made.

NYPD Statement(s):

Subject Officer: PO DANIEL O'CONNELL

- *PO O'Connell is a § 87(2)(b)-old Hispanic male who is § 87(2)(b), and has black hair.*
- *On the day of the incident, PO O'Connell was assigned to a foot post and worked from 6:00 p.m. to 2:35 a.m. with PO Steven Mercedes in uniform and on foot.*

CCRB Testimony

PO O'Connell was interviewed at the CCRB on February 24, 2010 (encl. 14a – 14c) and on March 19, 2010 (encl. 14d – 14e). On October 6, 2009, at 8:30 p.m., PO O'Connell and PO Mercedes conducted a vertical in a public housing building on § 87(2)(b) in the Bronx. On the roof of the seventeen story building, PO O'Connell saw a male exit a bodega on § 87(2)(b). The male placed a silver object, which PO O'Connell suspected was a firearm, in the front of his waistband. The area was well-lit. PO O'Connell and PO Mercedes did not use binoculars to make their observation. PO O'Connell said they were watching the bodega because it was a drug-prone location. They did not put anything over the radio about the firearm and did not request assistance. They ran down the stairs, exited the building, and canvassed the area along § 87(2)(b) in their police van. Five minutes later, PO O'Connell saw a male sitting in a park, subsequently identified as § 87(2)(b) who appeared to be the same male they had seen from the roof. PO O'Connell called to § 87(2)(b) and said, "Can I speak to you?" § 87(2)(b) angrily asked why. PO O'Connell and PO Mercedes explained what they had seen. § 87(2)(b) was upset and flailed and gestured with his arms raised in front of his chest. § 87(2)(b) was handcuffed for his and the officers' safety and frisked on his waistband, his torso and sides, though PO O'Connell did not recall by whom. PO O'Connell did not see anything on § 87(2)(b)'s person which looked like a weapon. Aside from the fact he appeared to be the male they had seen exit the bodega, PO O'Connell did not recall there being anything else about § 87(2)(b) which suggested he was armed. PO O'Connell and PO Mercedes did not search § 87(2)(b).

Either PO O'Connell or PO Mercedes obtained § 87(2)(b)'s ID. A male with § 87(2)(b) identified through the investigation as § 87(2)(b) yelled at the officers for stopping § 87(2)(b). Sgt. Valentin responded to the scene in a police vehicle at this time. There were other people in the area. PO O'Connell first said these people just watched the incident. He later said they screamed at the officers. PO Mercedes approached one of the males, identified as § 87(2)(b) and issued him a summons for an open container. None of the officers searched anyone. After obtaining § 87(2)(b)'s ID and preparing the summons, PO O'Connell and his partners left the scene. § 87(2)(b) and his friends screamed and cursed at the officers, calling them 'pussies.' PO O'Connell and PO Mercedes approached them again. They were now in front of § 87(2)(b). PO O'Connell explained that it was their intention to determine who had made the remark and issue this person a disorderly conduct summons. When no one admitted to making the remark, PO O'Connell and PO Mercedes left the scene. PO O'Connell did not recall if he or his partner called § 87(2)(b) or his companions 'pussies,' 'bitches,' or remark that they would 'fuck [them] up.' PO O'Connell did not think that he or his partners used profanity during the incident.

Subject Officer: PO STEVEN MERCEDES

- *PO Mercedes is a § 87(2)(b)-old Hispanic male who is § 87(2)(b), and has brown hair.*
- *On the day of the incident, PO Mercedes held the same assignment as PO O'Connell.*

CCRB Testimony

PO Mercedes was interviewed at the CCRB on February 24, 2010 (encl. 16a – 16b), § 87(2)(g)

PO Mercedes also said that he saw a male exit a bodega and place a silver object, which he suspected was a firearm, into his waistband. He stated the roof of the building was sixteen or seventeen stories in height and that he and his partner were not looking at the bodega from which the male exited for any particular reason. PO Mercedes said that when they saw § 87(2)(b) in the park area, he was not with anyone, though there were people in the area. PO Mercedes could not recall the first thing that was said to § 87(2)(b) only that it made him upset. PO Mercedes and PO O’Connell explained why they had approached him and told him to turn around. § 87(2)(b) refused, was belligerent and moved his arms around. He was handcuffed, though PO Mercedes did not recall by whom. PO Mercedes then frisked him on his waistband. He did not feel anything during the frisk which seemed to be a firearm. PO Mercedes did not know if anyone searched § 87(2)(b) during the incident. PO Mercedes saw a group of males near § 87(2)(b). They were gathered around an open bottle of E&J Brandy. § 87(2)(b) was holding a cup, which he put on the ground as PO Mercedes approached him. PO Mercedes issued him a summons for an open-container because he was the only male who was holding a cup and was closest to the bottle of Brandy. PO Mercedes did not remember searching § 87(2)(b). PO Mercedes also stated he did not recall if he or PO O’Connell called § 87(2)(b) or his companions ‘pussies,’ ‘bitches,’ or remark that they would ‘fuck [them] up.’ PO Mercedes did not recall if he or his partners used profanity during the incident.

Witness Officer: SGT. JAVIER VALENTIN

- Sgt. Valentin is a § 87(2)(b)-old Hispanic male who is § 87(2)(b), and is baldheaded.
- On the day of the incident, Sgt. Valentin was the assigned patrol supervisor and worked from 5:50 p.m. to 2:47 a.m. in uniform and in a marked police vehicle.

CCRB Testimony

Sgt. Valentin was interviewed at the CCRB on March 3, 2010 (encl. 18a – 18b). Sgt. Valentin approached PO O’Connell and PO Mercedes after they had stopped § 87(2)(b) and § 87(2)(b). He knew a summons was issued, but did not know to whom or why. PO Mercedes and PO O’Connell never told him they had seen a male with a firearm from the top of a nearby building. PO Mercedes and PO O’Connell did not frisk or search anyone in Sgt. Valentin’s presence. Sgt. Valentin did not hear them direct profanity towards anyone. Sgt. Valentin did not see them approach § 87(2)(b) and § 87(2)(b) a second time.

NYPD Document(s)

Stop, Question and Frisk Report

- According to a stop, question and frisk report (encl. 13a – 13d), § 87(2)(b) was suspected of criminal possession of a weapon because he fit a description and made furtive movements. He was frisked due to refusal to comply with the officers’ directions and furtive movements.

Other Evidence

Transcription of Video Footage

- § 87(2)(b) recorded 52 seconds of his interaction with the officers on the day of the incident (encl. 11a). The footage begins by showing two uniformed officers standing on the sidewalk near a marked police vehicle. An officer asks, “Who said it? Who said it?” A female voice, ostensibly that of § 87(2)(b) responds, “Hey! Nobody said nothing to you!” Then several voices begin shouting rapidly over one another. The words, “Come on, come one” and “Hey, look at

them call back up,” and “Yeah, yeah, get out of here!” are heard. One officer says, ““We just want to know who said it. That’s it. Nothing happened back there.” A male voice, emanating from out of view, loudly replies, “Hey man, I didn’t say nothing! I’m a grown man and I was there, so...” The officer then asks, “Well, then, who said it?” The same female voice then begins shouting incoherently at the officers, remarking that she would bear witness to the incident. The officers return to their police van and leave the scene. The footage ends with a male voice shouting, “Fuck them!”

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- [§ 87(2)(b)] and [§ 87(2)(b)] have not filed a Notice of Claim with the City of New York as of March 3, 2010, with regard to the incident (encl. 20).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- [§ 87(2)(b)] has filed the following CCRB complaints (encl. 6): [§ 87(2)(b)]

Subject Officer(s) CCRB History

- PO Mercedes and PO O’Connell have been members of the service for three years and there are no substantiated CCRB allegations against them (encl. 5a – 5b).

Conclusion

Identification of Subject Officer(s)

- PO O’Connell and PO Mercedes acknowledged interacting with [§ 87(2)(b)] and PO Mercedes acknowledged interacting with [§ 87(2)(b)]
- [§ 87(2)(b)] alleged that the officer who issued [§ 87(2)(b)] a summons questioned him, [§ 87(2)(g)].

Allegations Not Pleaded

[§ 87(2)(b)] alleged that PO O’Connell searched [§ 87(2)(b)] that officers directed profanity towards [§ 87(2)(b)] and [§ 87(2)(b)] and alleged that an officer threatened [§ 87(2)(b)] with force. [§ 87(2)(g)]

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Steven Mercedes stopped [§ 87(2)(b)]

§ 87(2)(b) alleged that the officers approached him and told him not to move. He stated this took place before the officers handcuffed § 87(2)(b). PO Mercedes said that there was no one else with § 87(2)(b) at the time of their approach, though there were people in his vicinity. § 87(2)(b) did not mention any officers stopping § 87(2)(b). § 87(2)(b) stated later in his interview that the officers immediately handcuffed § 87(2)(b). § 87(2)(g)

It is therefore recommended that Allegation A be closed, **Unfounded**.

Allegation B – Abuse of Authority: PO Steven Mercedes stopped § 87(2)(b)

Allegation C – Abuse of Authority: PO Daniel O’Connell stopped § 87(2)(b)

It is undisputed that § 87(2)(b) was handcuffed, and thus stopped, during the incident. § 87(2)(b) said that it was PO Mercedes who handcuffed him. PO O’Connell and PO Mercedes could not recall which officer handcuffed him. § 87(2)(g)

According to Kamins, New York Search & Seizure, p. 2-45 (2007 ed.), a police officer may forcibly stop an individual when he has reasonable suspicion that “the person is committing, has committed or is about to commit a crime” (encl. 1a – 1e). In this case, PO O’Connell and PO Mercedes explained that they stopped § 87(2)(b) because he resembled a male whom they had seen exit a bodega and place a silver object, which they suspected to be a gun, into his waistband. PO O’Connell and PO Mercedes made their observation on top of a sixteen or seventeen story building located across the street from the bodega the male exited. They did not use binoculars to assist them in making this observation.

§ 87(2)(g)

Photos, courtesy of Google Maps, illustrate the height of the buildings on § 87(2)(b) at the incident location, relative to ground-level stores (encl. 11a – 11b). § 87(2)(g)

As noted in People v. Cantor, 36 N.Y.2d 106, 324 (1975), an officer must cite specific and articulable facts, subject to logical deduction, to support a forcible stop and may not rely upon ‘vague or unparticularized hunches’ (encl. 2a – 2f). In this case, PO O’Connell and PO Mercedes stopped § 87(2)(b) based on his resemblance to a male who made some sort of motion towards his waistband. § 87(2)(g)

However, as noted in Kamins, New York Search & Seizure, p. 2-117, 2-118 (2007 ed.), an individual has a right to reject an unlawful encounter and an officer may not counter rejection of the encounter with forcible seizure (encl. 1a – 1e). § 87(2)(g)

It is therefore recommended that Allegations B and C be closed, **Substantiated**.

§ 87(2)(b)

██████████ Kamins, New York Search & Seizure notes that in some cases, a frisk may be conducted absent reasonable suspicion that the subject has committed a crime, but only in situations in which the subject is suspected of a violent crime or is acting in such a way as to pose a danger to the officers. However, a frisk conducted pursuant to either exception must still be supported by reasonable suspicion that the suspect is armed and ‘this suspicion must be based on clear and articulable facts’ (encl. 1a – 1e). In this case, PO Mercedes and PO O’Connell handcuffed § 87(2)(b) and PO Mercedes then frisked him on his waistband. § 87(2)(g)

Allegation E – Abuse of Authority: PO Steven Mercedes searched § 87(2)(b) and § 87(2)(b)

[illegible]

CCRB – Confidential

[REDACTED] (g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]

[REDACTED] It is therefore recommended that Allegation F be closed, **Exonerated**.

§ 87(2)(b)

Allegation H – Discourtesy: PO Daniel O’Connell spoke obscenely to

and § 87(2)(b)

§ 87(2)(b) first claimed both officers called them ‘a bunch of pussies.’ He later stated that officers said they’d ‘fuck [them] up’ and called them a ‘fucking bunch of bitches.’ § 87(2)(g)

and § 87(2)(b) § 87(2)(g)

_____ it is recommended that Allegations G and H be closed, **Unsubstantiated**.

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Supervisor: _____

_____	_____	_____
Title/Signature	Print	Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date